

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amanda Harouche	Team: Squad #16	CCRB Case #: 201505901	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/16/2015 12:40 AM	Location of Incident: In the vicinity of 186th Street and Jamaica Avenue	18 Mo. SOL 1/16/2017	Precinct: 103		
Date/Time CV Reported Fri, 07/17/2015 11:28 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 07/17/2015 11:28 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Domenick Lagomarsine	13783	943457	103 PCT
2. SGT Donald Kipp	01024	904278	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Domenick Lagomarsine	Abuse: PO Domenick Lagomarsine stopped § 87(2)(b)	A . Substantiated
B . SGT Donald Kipp	Abuse: Sgt. Donald Kipp stopped § 87(2)(b)	B . Substantiated
C . POM Domenick Lagomarsine	Discourtesy: PO Domenick Lagomarsine spoke rudely to § 87(2)(b)	C . Unsubstantiated
D . SGT Donald Kipp	Discourtesy: Sgt. Donald Kipp spoke rudely to § 87(2)(b)	D . Unsubstantiated
E . POM Domenick Lagomarsine	Abuse: PO Domenick Lagomarsine searched § 87(2)(b)	E . Unsubstantiated
F . SGT Donald Kipp	Abuse: Sgt. Donald Kipp searched § 87(2)(b)	F . Unsubstantiated
G . SGT Donald Kipp	Abuse: Sgt. Donald Kipp frisked § 87(2)(b)	G . Substantiated
H . POM Domenick Lagomarsine	Abuse: PO Domenick Lagomarsine refused to provide his name to § 87(2)(b)	H . Unsubstantiated
I . SGT Donald Kipp	Abuse: Sgt. Donald Kipp threatened to arrest § 87(2)(b)	I . Unsubstantiated

Case Summary

On July 16, 2015, at approximately 12:40 a.m., as § 87(2)(b) was walking in the vicinity of Jamaica Avenue and 186th Street in Queens, he was stopped by PO Domenick Lagomarsine and Sgt. Donald Kipp, of the 103rd Precinct, because they suspected him of being the suspect of a recent purse snatching (**Allegation A** and **Allegation B**). Both PO Lagomarsine and Sgt. Kipp approached § 87(2)(b) and allegedly spoke discourteously to him using the word “fuck” in their statements such as, “Where the fuck are you going?” and “What the fuck are you doing here?” (**Allegation C** and **Allegation D**). PO Lagomarsine and Sgt. Kipp then allegedly entered § 87(2)(b)'s pants pockets (**Allegation E** and **Allegation F**) and PO Lagomarsine patted § 87(2)(b)'s front pants pocket (**Allegation G**). § 87(2)(b) was asked to sit against a wall while the officers waited for a car conducting a confirmatory identification to arrive. While he was sitting against the wall, § 87(2)(b) asked PO Lagomarsine for his identity and rank; PO Lagomarsine allegedly refused to provide this information by saying, “Shut the fuck up. I ask the questions around here” (**within Allegation C** and **Allegation H**). After the confirmatory identification was conducted, the victim was unable to identify § 87(2)(b) and so § 87(2)(b) was told he could leave the location. Sgt. Kipp allegedly told § 87(2)(b) “Get the fuck up. I don’t want to see your face back over here or else I am going to fucking lock you up” and “Turn the fuck around, shut the fuck up and keep walking or I am going to lock you back up” and “I don’t want to hear what the fuck you want to say” (**within Allegation D** and **Allegation I**). § 87(2)(b) was not arrested or summonsed as a result of this incident.

There is no video footage that exists for this case. The video footage obtained from the location that § 87(2)(b) was stopped did not capture the incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation because he does not believe in it (Board Review 01).
- As of August 24, 2015, § 87(2)(b) had not filed a Notice of Claim with the NYC Comptroller’s Office (Board Review 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed four previous CCRB complaints § 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]
- PO Lagomarsine has been a member of the service for eight years, and has had 10 CCRB complaints with a total of 20 allegations against him. No allegations have been substantiated against PO Lagomarsine. PO Lagomarsine has had five prior discourtesy allegations against him, all of which have been closed as either unsubstantiated, complainant uncooperative or complaint withdrawn (Board Review 05).
- Sgt. Kipp has been a member of the service for 22 years, and has had 10 CCRB complaints with a total of 17 allegations against him. No allegations have been substantiated against Sgt. Kipp § 87(2)(g)
[REDACTED]

Findings and Recommendations

Allegation A – Abuse of Authority: PO Domenick Lagomarsine stopped § 87(2)(b)

Allegation B – Abuse of Authority: Sgt. Donald Kipp stopped § 87(2)(b)

It is undisputed that both Sgt. Kipp and PO Lagomarsine exited their vehicle and stopped § 87(2)(b) at 12:40 a.m. because they suspected him of being the perpetrator of a purse snatching based on him matching a description. At the time of the incident, § 87(2)(b) a dark skinned male, was wearing a black t-shirt (Board Review 07). Both officers considered the purse snatching to be a robbery (Board Review 08, Board Review 09, Board Review 10, Board Review 11).

There was a radio run regarding a larceny in progress with a woman's purse being snatched at 12:34 a.m. Information from the 911 calls and radio communications show that the purse snatching occurred at the intersection of 181st Street and 91st Avenue and the perpetrator fled on 181st Street towards Jamaica Avenue. The only description the female victim of the purse snatching could provide was that the perpetrator was a black male wearing a black shirt (Board Review 12, Board Review 13, Board Review 14).

PO Lagomarsine stated that he heard the radio run and that as he was driving on Jamaica Avenue towards the incident location; he noticed the only male on the street was a black male wearing a black shirt and jeans, which matched the description of the perpetrator. PO Lagomarsine suspected § 87(2)(b) to be the perpetrator because he was a black male, wearing a black t-shirt and blue jeans and was the only person walking on Jamaica Avenue, in the vicinity of the theft location. PO Lagomarsine decided to stop § 87(2)(b) based on this. When PO Lagomarsine stopped the car and announced he was a police officer, § 87(2)(b) jolted his body as if he was going to run away but then stopped in his place (Board Review 08, Board Review 09).

Sgt. Kipp stated that he and PO Lagomarsine were canvassing the area for the perpetrator of the purse snatching radio run, who was described as a black male wearing a black shirt, when they saw § 87(2)(b) walking down Jamaica Avenue at the corner of 186th Street, which was about three to four blocks from where the theft had occurred. Sgt. Kipp felt that the purse snatching was considered a robbery. Because § 87(2)(b) fit the description of the perpetrator, he and PO Lagomarsine stopped § 87(2)(b). Sgt. Kipp and PO Lagomarsine exited their vehicle and told § 87(2)(b) to "Stop" and § 87(2)(b) complied (Board Review 10, Board Review 11).

The Stop, Question and Frisk report, which was filled out by PO Lagomarsine, states that § 87(2)(b) was stopped at 12:40 a.m., because he was suspected of a robbery, fit the description, made furtive movements, was in the proximity to the scene of the suspected offense and because he gave evasive, false or inconsistent responses to officer's questions. § 87(2)(b) was observed for one minute and stopped for seven minutes (Board Review 15).

Both officers considered § 87(2)(b) to be stopped when they exited their vehicle and approached him. The only description that the officers had of the perpetrator was that he was a black male

wearing a black shirt and that he had fled towards Jamaica Avenue from 181st Street and 91st Avenue. § 87(2)(b) was stopped six minutes after the crime was reported over the radio by the dispatcher. He was stopped at Jamaica Avenue between 186th Street and 187th Street, which was determined via Google maps to be a ten minute walk from the theft location (Board Review 21).

When an officer had reasonable suspicion that someone is engaged in criminal activity, he may stop the individual. People v. De Bour, 40 N.Y.2d 210 (1976) (Board Review 16). It has consistently been held that general descriptions are not sufficient to constitute reasonable suspicion for a stop. People v. Choy, 173 A.D.2d 883 (1991), People v. Dawkins 163 A.D.2d 322 (1990) (Board Review 17, Board Review 20). Sometimes a general description is sufficient to constitute reasonable suspicion for a stop if there is only a general description of a perpetrator, the person stopped is in close proximity to the site of the crime and there has been a short passage of time between the commission of the crime and the observation of the person stopped. People v. Holland 4 A.D.3d 375(2004) (Board Review 21).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegations A and B be Substantiated.**

Allegation C – Discourtesy: PO Domenick Lagomarsine spoke rudely to § 87(2)(b)
Allegation D – Discourtesy: Sgt. Donald Kipp spoke rudely to § 87(2)(b)
Allegation H – Abuse of Authority: PO Domenick Lagomarsine refused to provide his name to § 87(2)(b)
Allegation I – Abuse of Authority: Sgt. Donald Kipp threatened to arrest § 87(2)(b)
§ 87(2)(g)

§ 87(2)(b) stated that when PO Lagomarsine and Sgt. Kipp approached him they began asking him questions while using the word “fuck;” § 87(2)(b) alleged that each officer asked him, “Where the fuck are you going?” and “What the fuck are you doing here?” § 87(2)(b) also stated that later into the interaction when he was sitting against the fence, he asked PO Lagomarsine for his identity and if he was a police officer or detective and that PO Lagomarsine responded by saying, “Shut the fuck up. I ask the questions around here. You don’t need to know that.” § 87(2)(b) also stated that when he was told he could leave, Sgt. Kipp said “Get the fuck up. I don’t want to see your face back over here or else I am going to fucking lock you up” and that Sgt. Kipp also said, “Turn the fuck around, shut the fuck up and keep walking or I am going to lock you up.” § 87(2)(g)

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

PO Lagomarsine stated did not use the word “fuck” or any other discourtesies with § 87(2)(b) including any of the above mentioned phrases, and did not hear Sgt. Kipp use the word “fuck” or use any other discourtesies with § 87(2)(b) including any of the above mentioned phrases. He stated that § 87(2)(b) did not ask him for his identity or his rank during the incident so he did not provide any information to § 87(2)(b) PO Lagomarsine did not know of Sgt. Kipp telling § 87(2)(b) that he would lock him up. PO Lagomarsine stated that when § 87(2)(b) was told he could leave, he was compliant and stood up and walked away (Board Review 08, Board Review 09).

Sgt. Kipp stated that he did not use the word “fuck” or any other discourtesies with § 87(2)(b) including any of the above mentioned statements, and that PO Lagomarsine did not either. Sgt. Kipp did not hear § 87(2)(b) ask PO Lagomarsine for his identity. Sgt. Kipp stated that when § 87(2)(b) was told he could leave, § 87(2)(b) was compliant and walked away. Sgt. Kipp denied saying anything to § 87(2)(b) about arresting him or locking him up (Board Review 10, Board Review 11).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
Therefore, it is recommended that **Allegations C, D, H and I** be closed as **Unsubstantiated**.

Allegation E – Abuse of Authority: PO Domenick Lagomarsine searched § 87(2)(b)

Allegation F – Abuse of Authority: Sgt. Donald Kipp searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that as PO Lagomarsine and Sgt. Kipp approached him and asked him questions such as where he was coming from, they both simultaneously placed their hands inside his front right and left pants pocket and back right and left pants pockets (Board Review 01, Board Review 16, Board Review 18, Board Review 19).

Both PO Lagomarsine and Sgt. Kipp denied entering any of § 87(2)(b)'s pockets (Board Review 08, Board Review 09, Board Review 10, Board Review 11).

The Stop, Question and Frisk report notes that § 87(2)(b) was not searched (Board Review 15).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) Therefore, it is recommended that **Allegations E and F** be closed as **Unsubstantiated**.

Allegation G – Abuse of Authority: Sgt. Donald Kipp frisked § 87(2)(b)

It is undisputed that § 87(2)(b) was frisked by PO Lagomarsine, § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) stated that after he was searched by both officers, PO Lagomarsine patted the outside of his front left pants pocket, which contained his cell phone (Board Review 01).

PO Lagomarsine considered the radio run of the purse snatching incident to have been considered a robbery according to his memo book and statement to the CCRB. Although PO Lagomarsine denied searching § 87(2)(b) he admitted to patting the outside of § 87(2)(b)'s waistband and pockets. PO Lagomarsine stated that he frisked § 87(2)(b) because he was suspected of a robbery, which is a violent crime and because he made furtive movements, which was when he looked as if he was going to run away when the officers first stopped him (Board Review 08, Board Review 09).

Sgt. Kipp corroborated that PO Lagomarsine frisked § 87(2)(b) and stated that PO Lagomarsine made the decision to frisk § 87(2)(b) on his own. Sgt. Kipp also stated that the crime § 87(2)(b) was suspected of, the purse snatching, was considered a violent crime robbery, because the perpetrator of the crime had grabbed the victim from behind which meant that force was used, making it a robbery (Board Review 10, Board Review 11).

The Stop, Question and Frisk report prepared by PO Lagomarsine states that § 87(2)(b) was suspected of a robbery and that PO Lagomarsine frisked § 87(2)(b) because he was suspected of a violent crime and because he made furtive movements (Board Review 15).

In the radio communications that both of the officers heard, the dispatcher stated that the incident was a “32,” the radio code for larceny in progress, three times before Sgt. Kipp came over the radio and said that he had one male stopped in regard and requested Sector C to come to the location for a confirmatory identification. Additionally, the only information about the perpetrator and the crime that was communicated over the radio before Sgt. Kipp requested a confirmatory identification was that there was a larceny in progress, and that a female caller stated that her purse was recently snatched by a black male wearing a black shirt who fled on foot towards Jamaica Avenue on 181st Street; the information regarding the perpetrator grabbing the female from behind was discussed by Sector C after they said they were already on their way to conduct the confirmatory identification with the victim (Board Review 12, Board Review 13, Board Review 14).

A frisk is only justified if the perpetrator is suspected of a serious and violent crime such as a robbery or burglary; larceny is not considered to be a serious violent crime People v. DelVecchio 277 A.D.2d 927 (2000) (Board Review 19).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **Substantiated**.

Pod: _____

Investigator: _____	_____	_____
Signature	Print	Date

Pod Leader: _____	_____	_____
Title/Signature	Print	Date

Attorney: _____	_____	_____
Title/Signature	Print	Date